

Dr. Jay Hasty

Corvidae, LLC

700 Calle Ernesto Cerra., San Juan, PR

corvidaelabs@gmail.com

540-798-2312

Subject: Proposal for NeoN2

Brief Project Description: Techno-economic analysis for steam reformation system.

Dear Steven,

I'm glad that we were introduced and it's been great learning about your company and what you hope to achieve with the technology. I appreciate the opportunity to submit this proposal for your consideration.

We can support your goals for a total engagement fee of **\$3200** for up to **10** hours per month, for **3 months** and billed at a standard rate of **\$150/hr** thereafter as requested and agreed by both parties. I look forward to our engagement and to co-create an agreed upon *Scope of Work* in support of the success of your project based on your goals. Given our conversations thus far, I could offer the following services in support of your goals:

- References/introductions to individuals and organizations in my network associated with success toward the project goals.
- General business and in-region development strategy (ie: partner relationships, project development and investor/customer pitch decks, customer-facing content strategy).
- Customer and technical support strategy, customer agreements, warrantee, claims and customer management.
- Preparation of market requirement documents (MRD).
- Techo-economic and financial analysis.
- Due diligence activities, technology vetting and financial/market assessments.
- Preparation of market requirement documents (MRD).
- Go-to-market strategy, sales team training.
- Customer discovery, and messaging.

Please find the *Master Level Agreement* and the *Mutual NDA* in the following sections of this document. If this proposal is acceptable, sign in below and return a copy to me.

Looking forward to working together,

Dr. Julia Hasty

Client Initial SK

Contractor Initial 

MASTER LEVEL AGREEMENT

This Master Service Agreement ("Agreement") dated as of the 15th day of January, 2020, between **Corvidae LLC**, having its principal place of business at 700 Calle Ernesto Cerra, San Juan, PR 00907 ("Contractor"), and Neo-H2, having its principal place of business at 724 W. Main Street, Rock Hill, S.C. ("CLIENT").

Section 1. SCOPE OF SERVICES

1.1 Services Rendered. Contractor shall provide to Client the product management, design, engineering and consulting services (the "Work"). Request to provide services may come in the form of a written request, verbal communication, or through electronic means, email, etc.

Section 2. PAYMENT FOR SERVICES

2.1 Payment of Services. Client shall pay for the Work at the time of invoice, either on a "time and materials" basis or as a fixed fee, as identified in a "Statement Of Work". Until, a formal "Statement Of Work" is in place, all services performed will be considered "time and materials" and charged for as per section 2.2.

2.2 Payment of Services is due at the time of invoice and charged at 3% monthly interest after 30 days of late payment. The number of hours included in a reoccurring engagement fee resets at the beginning of each period and does not roll over into the following recurring period.

2.3 As compensation for "time and materials" services rendered, the Client shall pay the Contractor at the rate of \$150.00 per hour. Any materials or third party services paid for by the Contractor, in support of the services rendered, will be invoiced in full (including applicable tax and shipping costs) plus a 5% handling fee, to the client. Travel costs including airfare, accomodations and mileage rate (\$0.58/mi) are billed separately.

2.4 All third-party services that are agreed and contracted out to third-party organizations are to be billed directly to the Client.

2.5 All services involving involving direct equipment sales with regards to a customer account will be billed at 5% of the total final sales price of the equipment excluding taxes, shipping and installation. If the customer account is to be passed off to other sales personnel after the initial contact with the customer has been made, the percent commission and the formal pass-off is to be agreed ahead of time in writing.

2.6 While working from a "Statement Of Work", if Work is required or requested by Client which has not been specified in the Statement Of Work, Contractor and Client shall negotiate in good faith a change

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order ("Change Order"), which will modify the Statement Of Work and pricing. If the parties do not reach agreement on the Change Order within twenty (20) days after written notice from either party to the other party, then the additional Work shall be furnished in accordance with Contractor's then current practice and rates on a "time and materials" basis.

2.7 Time of Payment. Client shall pay all advances, fees, expenses and other sums owing to Contractor hereunder, upon receipt of an invoice or other notice thereof (as applicable) unless otherwise specified in the Statement Of Work or herein, all without deduction or offset.

2.8 Dispute of Invoices. Should Client dispute any invoice from Contractor, Client must notify Contractor in writing of any such dispute within thirty (30) days from the date of the invoice of in dispute. If no such notice is received by Contractor within this thirty (30)-day period, Client agrees to accept each such invoice as accurate and payable in full, in accordance with its terms.

2.9 Compensation shall be payable within 30 days of receipt of Contractor's invoice for services rendered supported by reasonable documentation. Payments more than 30 days late after submission of any invoice will be subject to late fees consisting of 1.5% monthly interest until payment is made.

2.10 All fees are subject to change after July 1, 2020.

Section 3. METHOD OF PERFORMING SERVICES

3.1 Method of Performing Services. Contractor shall determine the method and detail of performing the Work. Client and Contractor shall develop appropriate administrative procedures for coordination among Contractor and Client personnel. Contractor will accommodate work schedule requests to the extent reasonably practicable. Contractor may, as appropriate, utilize subcontractors or its own employees relative to the services provided hereunder; provided that Contractor shall solely bear all fees and costs relative thereto.

3.2 Project Completion. The Work shall be deemed completed when the deliverables or services (as applicable) specified in the Statement Of Work have been furnished to Client. Client agrees to act in good faith to accept the Work if it substantially meets the requirements of the Statement Of Work. If Client reasonably believes that the Work does not substantially satisfy the Statement Of Work requirements, Client shall notify Contractor in writing of the specific deficiencies within five (5) business days after Contractor furnishes same (a "Deficiency Notice"), failing which the Work shall be deemed accepted for all purposes. Contractor agrees to use its best efforts to perform the Work required to meet the requests of Client set out in the Deficiency Notice, provided that these requests are specified in the Statement Of Work. If the requests are not specified in the Statement Of Work, then Client shall pay for such additional services on a "time and materials" basis or in accordance with the Change Order procedure set forth in Section 2.1.

Section 4. RESPONSIBILITIES OF CLIENT

4.1 Client Responsibilities. Client accepts sole responsibility for the use of the Deliverables in its business and operations. Contractor is not responsible for obsolescence of the Deliverables that may result from passage of time, technical developments or changes in Client's requirements. Contractor assumes no responsibility for the use of superseded, outdated, or uncorrected versions of the Deliverables, or for the equipment, licenses, maintenance or service agreements or warranties of vendors.

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4.2 Cooperation. Client shall assist Contractor in the performance of its obligations under this Agreement and shall undertake the responsibilities specified in this Section 4.2 at its own expense. Client shall make available to Contractor a designated representative: Joao Cullen ("Client's Representative"), who shall be authorized to make binding decisions for Client regarding the obligations which are the subject of this Agreement, and shall perform or have performed other duties and requirements of Client as set forth in this Agreement or in an applicable Statement Of Work.

4.3 Cooperation. Client understands that Contractor shall rely upon Client's Representative as having the authority specified in Section 4.2 herein and that all official communications from Contractor to Client shall be addressed to Client's Representative.

Section 5 WARRANTIES AND LIMITED LIABILITY

5.1 Warranties of Client. Client warrants that it owns all right, title, and interest in and to, or has full and sufficient right and authority to use in the manner contemplated by this Agreement all intellectual property and other materials provided by Client to Contractor in connection with Contractor's performance of the Work.

5.2 Waiver of Warranties. Contractor makes no representation or warranty with regard to the Work, Deliverables, Contractor Background Technology or any other matter or thing, whether express or implied, statutory, or otherwise. Contractor specifically disclaims all warranties including, but not limited to, all warranties as to merchantability, fitness for a particular purpose, truth, accuracy, completeness, timeliness, non-infringement, suitability of information, functionality, quality, or performance. Contractor does not represent or warrant that the Work, Deliverables, Contractor Background Technology or any other matter will achieve any specific result, operate without interruption, or be error-free. The Deliverables and Contractor Background Technology are being provided on an "as is, where is" basis.

5.3 Excluded Warranties. Contractor does not make any representation or warranty as to any third party software, hardware, equipment or supplies furnished to, used by or procured for Client.

5.4 Exclusion of Certain Remedies and Damages. In no event shall Contractor be liable to or through Client or to or through any of Client's clients, licensees, licensors, partners, co-venturers or any third party for special, collateral, indirect, incidental, consequential or punitive damages, including, but not limited to, any such damages arising from breach of contract or breach of warranty or from negligence or strict liability or any tort or from any failure of the Deliverables to perform or function or from any failed or interrupted service or communications or from lost data, lost revenue, lost profits, lost goodwill, damaged reputation, or any cost to obtain any substitute goods or services, arising out of or relating in any way to this Agreement (even if Contractor had been advised of the possibility of such damages).

5.5 Limitation on Liabilities. Client agrees that if there ever is any liability on the part of Contractor for any damages of any kind, including direct or compensatory damages, then the total aggregate liability of Contractor for any and all claims that arise out of or relate in any way to this Agreement or to the Work or Deliverables will be capped and limited to the total dollar amount of money which Client has paid to Contractor pursuant to this Agreement during the twelve month period immediately preceding the first event that has given rise to such claim(s). This limitation on Contractor's liability is cumulative; all payments made for all claims and damages shall be aggregated, to determine if the limit has been

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reached. The above limitation of liability reflects an allocation of risk between the parties in view of the low fees being charged by Contractor herein, and is a material term hereof.

5.6 Force Majeure. Contractor shall not be liable to Client for any failure or delay caused by events beyond Contractor's reasonable control, including, without limitation, Client's failure to furnish necessary information; acts of God; sabotage; failure or delays in transportation or communication; failures or substitutions of equipment; labor disputes; accidents; shortages of labor, fuel, raw materials or equipment; or technical failures.

Section 6 TERM AND TERMINATION

6.1 Term. This Agreement shall commence on the date set forth above and continue for so long as Contractor does Work for Client, or through the completion of the deliverables in all Statement Of Works, as applicable, whichever is later. Either party may terminate this Agreement at any time by giving five (5) days' advance written notice to the other party at any time without the need to specify a reason for termination; provided that if Client exercises this early termination option, it will pay Contractor not less than fifty percent (50%) of all fees contemplated in the Statement Of Works. Notwithstanding any such termination, the terms of Sections 5, 6 and 7 shall survive indefinitely.

6.2 Remaining Payments. Upon termination of this Agreement for any reason, in the event that the "time and materials" payment method is selected in the Statement Of Work, Client shall pay the full amount of all outstanding invoices (together with all unbilled accrued fees, expenses and other sums relating to the Work) without deduction offset. Upon termination of this Agreement for any reason, in the event that the fixed fee payment method is selected in the Statement Of Work, Contractor shall be entitled a pro rata payment for work in progress based on the percentage of Work then completed as reasonably determined by Contractor, plus the full amount of payment attributable to hardware, software, other materials already furnished by Contractor or for which costs have been incurred by Contractor and all other out of pocket costs and expenses of Contractor. The foregoing payments shall be made within seven (7) business days of such termination.

Section 7 MISCELLANEOUS

7.1 Governing Law, Venue and Attorneys' Costs. This Agreement shall be governed by the internal laws of the State of California applicable to agreements entered into and wholly performed in California. The parties agree that all actions or proceedings relating to this Agreement shall take place in the state or federal courts in the City of San Francisco, California, consent to the jurisdiction of such Courts and irrevocably waive any objections that they may have based upon improper venue or inconvenient forum. In the event of any litigation or other proceeding relating to this Agreement, the prevailing party shall be entitled to its reasonable attorneys' fees and expenses and the costs of such litigation, arbitration or proceeding.

7.2 Independent Contractor. The parties are independent contractors to one another, and nothing herein in this Agreement shall create an agency partnership or joint venture between the parties, or establish the relationship of employer and employee.

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7.3 Notices. All notices required or permitted hereunder shall be given in writing addressed to the respective parties as set forth herein, unless another address shall have been designated, and shall be delivered by hand or by registered or certified mail, postage prepaid.

7.4 Equitable Relief. Each party agrees that the other party shall be entitled to temporary and permanent injunctive relief, specific performance and other equitable relief for any breach or threatened breach of Section 5, without the necessity of proving actual damages. Each party agrees that a monetary remedy for any breach or threatened breach of such provisions would be inadequate, and impracticable and extremely difficult to prove, and that such breach or threatened breach would cause the other parties irrevocable harm.

7.5 Entire Agreement. This Agreement, together with the Statement Of Work, and such additional Statement Of Works or Change Orders as the parties may enter into from time to time constitutes the entire agreement of the parties and supersedes all prior representations, proposals, discussions, and communications, whether oral or in writing. This Agreement may be modified only in a writing signed by both parties. Mutually-agreed amendments to this Agreement or the Statement Of Work made via email are acceptable.

7.6 Severability. If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall be unaffected and shall be enforced to the fullest extent permissible under applicable law.

7.7 Counterparts. This Agreement may be executed in several counterparts and by facsimile, each of which shall be an original, but all of which together shall constitute one and the same Agreement.

7.8 Waiver. No amendment or waiver of any provision of this Agreement shall be effective, unless it is in writing and signed by the parties hereto, and then such waiver or consent shall be effective only in the specific instance for which given. The failure of any party to insist upon performance of any of the terms of this Agreement shall not be construed as a waiver of any rights granted hereunder or any such term, covenant or condition.

7.9 Parties in Interest; Assignment. This Agreement shall bind and inure to the benefit of the parties and their respective permitted successors and assigns. Neither party shall assign all or any part of this Agreement without the prior written consent of the other party, except that Contractor may assign this Agreement to an affiliate which agrees in writing to be bound thereby and a party may assign this Agreement to an entity which acquires all or substantially all the assets of such party or to the survivor of a merger involving such party if the acquiring or surviving entity (as applicable) is legally bound by this Agreement.

7.10 Publicity Rights. Contractor may include Client's company name, logo and trademarks in its various marketing materials, including but not limited to its website and advertisements. In addition, Client will allow Contractor to publicize the execution of this Agreement and Client's use of Contractor's services to the benefit of both parties.

7.11 All mail (notices, checks, etc) should be mailed to the following official forwarding address:

ATTN: Julia Hasty
514 Americas Way #8071
Box Elder, SD 57719

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IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives, on the date and year first above written.

Company (CLIENT): Neo-H2, LLC	Company (CONTRACTOR): Corvidae LLC
Name (Print): Steven Kadiev	Name (Print) Dr Julia Hasty
Title: CEO	Title: Owner
Signature/Date: <i>steven kadiev</i>	Signature/Date: <i>Julia Hasty</i> 01/20/20

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